

PETITION - CLEAR A FIRST DRUG-POSSESSION CASE THAT ENDED IN A CONDITIONAL DISCHARGE

IN THE COURT

(Clerk of the court that entered the conditional discharge order - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

APPLICATION TO EXPUNGE RECORDS OF ARREST, TRIAL AND CONVICTION AFTER A FIRST-OFFENCE CONTROLLED SUBSTANCE CONDITIONAL DISCHARGE, W. VA. CODE Sec. 60A-4-407(B)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under W. Va. Code Sec. 60A-4-407(a); W. Va. Code Sec. 60A-4-407(b); W. Va. Code Sec. 60A-4-407(c); W. Va. Code Sec. 60A-4-401(c); W. Va. Code Sec. 60A-4-407a and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

A person who has not previously been convicted of any offence under chapter 60A or under any federal or state narcotics, marihuana, stimulant, depressant or hallucinogenic drug statute, and who pleads guilty to or is found guilty of possession of a controlled substance under Sec. 60A-4-401(c), may with their consent have further proceedings deferred and be placed on probation without entry of a judgment of guilt. On fulfilment of the terms and conditions the court discharges the person and dismisses the proceedings without adjudication of guilt. The discharge is not a conviction for purposes of any disqualification or disability imposed by law, and its effect is to restore the person in contemplation of law to the status occupied before arrest and trial. There may be only one discharge and dismissal under the section with respect to any person. Read at source on 2026-08-06, subsection (b) supplies the relief this track generates: after a period of not less than six months, beginning to run immediately on the expiration of the term of probation, the person may apply to the court for an order to expunge from all official records all recordations of the arrest, trial and conviction, and if the court determines after a hearing that the person was not guilty of any serious or repeated violation of the conditions of probation during probation or before the application, it shall order the expungement. Subsection (c) makes the person liable for the court costs assessable against a person convicted under Sec. 60A-4-401(c), and payment may be a condition of probation.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - applicant name] What is your full legal name as it appears on the court record?

.....
.....

[C2 - date of birth] What is your date of birth?

.....
.....

[C3 - court and county] Which court, and in which county, placed you on probation under the conditional discharge?

.....
.....

[C4 - case number] What is the case number?

.....
.....

[C5 - arrest date] On what date were you arrested, and which agency arrested you?

.....
.....

[C6 - offense charged] What possession offence were you charged with, and under which Code section?

.....
.....

[C7 - discharge order date] On what date did the court enter the order deferring proceedings and placing you on probation?

.....
.....

[C8 - probation term] How long was the probation term the court imposed?

.....
.....

[C9 - probation expiry date] On what date did that probation term expire?

.....
.....

[C10 - dismissal date] On what date did the court discharge you and dismiss the proceedings?

.....
.....

[C11 - probation violations] During probation, or since it ended, has anyone alleged that you broke the conditions of your probation?

.....
.....

[C12 - prior drug conviction] Before this case, had you ever been convicted of any drug offence, in West Virginia, another state or a federal court?

.....
.....

[C13 - prior conditional discharge] Have you ever had a conditional discharge under this section before, in any West Virginia case?

.....
.....

[C14 - court costs paid] Have you paid the court costs the court assessed in this case?

.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under W. Va. Code Sec. 60A-4-407(a); W. Va. Code Sec. 60A-4-407(b); W. Va. Code Sec. 60A-4-407(c); W. Va. Code Sec. 60A-4-401(c); W. Va. Code Sec. 60A-4-407a.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route:

obligation:track-pathway:WV:wv_drug_conditional_discharge:first-offense-drug-possession-conditional-discharge-relief

SUPPORTING AFFIDAVIT - CLEAR A FIRST DRUG-POSSESSION CASE THAT ENDED IN A
CONDITIONAL DISCHARGE

IN THE COURT

(Clerk of the court that entered the conditional discharge order - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

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APPLICATION TO EXPUNGE RECORDS OF ARREST, TRIAL AND CONVICTION AFTER A
FIRST-OFFENCE CONTROLLED SUBSTANCE CONDITIONAL DISCHARGE, W. VA. CODE Sec.
60A-4-407(B)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under W. Va. Code Sec.
60A-4-407(a); W. Va. Code Sec. 60A-4-407(b); W. Va. Code Sec. 60A-4-407(c); W. Va. Code Sec.
60A-4-401(c); W. Va. Code Sec. 60A-4-407a and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

A person who has not previously been convicted of any offence under chapter 60A or under any federal or state narcotics, marihuana, stimulant, depressant or hallucinogenic drug statute, and who pleads guilty to or is found guilty of possession of a controlled substance under Sec. 60A-4-401(c), may with their consent have further proceedings deferred and be placed on probation without entry of a judgment of guilt. On fulfilment of the terms and conditions the court discharges the person and dismisses the proceedings without adjudication of guilt. The discharge is not a conviction for purposes of any disqualification or disability imposed by law, and its effect is to restore the person in contemplation of law to the status occupied before arrest and trial. There may be only one discharge and dismissal under the section with respect to any person. Read at source on 2026-08-06, subsection (b) supplies the relief this track generates: after a period of not less than six months, beginning to run immediately on the expiration of the term of probation, the person may apply to the court for an order to expunge from all official records all recordations of the arrest, trial and conviction, and if the court determines after a hearing that the person was not guilty of any serious or repeated violation of the conditions of probation during probation or before the application, it shall order the expungement. Subsection (c) makes the person liable for the court costs assessable against a person convicted under Sec. 60A-4-401(c), and payment may be a condition of probation.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

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[C13 - prior conditional discharge] Have you ever had a conditional discharge under this section before, in any West Virginia case?

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[C14 - court costs paid] Have you paid the court costs the court assessed in this case?

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D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under W. Va. Code Sec. 60A-4-407(a); W. Va. Code Sec. 60A-4-407(b); W. Va. Code Sec. 60A-4-407(c); W. Va. Code Sec. 60A-4-401(c); W. Va. Code Sec. 60A-4-407a.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route:

obligation:track-pathway:WV:wv_drug_conditional_discharge:first-offense-drug-possession-conditional-discharge-relief

CERTIFICATE OF SERVICE - CLEAR A FIRST DRUG-POSSESSION CASE THAT ENDED IN A
CONDITIONAL DISCHARGE

IN THE COURT
(Clerk of the court that entered the conditional discharge order)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

CERTIFICATE OF SERVICE

I, Maria-Alejandra O'Shaughnessy-Whitfield, state that on the date I write beside my signing line below,
and not before, I delivered a copy of the petition and of the proposed order filed with it to the person or
office named here:

Name and office of the person or office to whom the papers were delivered:

.....

Address at which the papers were delivered:

.....

How the papers were delivered - by hand, by mail, or by the electronic method the court accepts:

.....

DATE SIGNATURE OF PETITIONER

(DO NOT SIGN OR DATE THIS PAGE UNTIL THE PAPERS HAVE ACTUALLY BEEN
DELIVERED. A certificate signed before delivery states something that has not happened.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route:

obligation:track-pathway:WV:wv_drug_conditional_discharge:first-offense-drug-possession-conditional-
discharge-relief

FILING INSTRUCTIONS - CLEAR A FIRST DRUG-POSSESSION CASE THAT ENDED IN A CONDITIONAL DISCHARGE

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Application to Expunge Records of Arrest, Trial and Conviction After a First-Offence Controlled Substance Conditional Discharge, W. Va. Code Sec. 60A-4-407(b).

A person who has not previously been convicted of any offence under chapter 60A or under any federal or state narcotics, marihuana, stimulant, depressant or hallucinogenic drug statute, and who pleads guilty to or is found guilty of possession of a controlled substance under Sec. 60A-4-401(c), may with their consent have further proceedings deferred and be placed on probation without entry of a judgment of guilt. On fulfilment of the terms and conditions the court discharges the person and dismisses the proceedings without adjudication of guilt. The discharge is not a conviction for purposes of any disqualification or disability imposed by law, and its effect is to restore the person in contemplation of law to the status occupied before arrest and trial. There may be only one discharge and dismissal under the section with respect to any person. Read at source on 2026-08-06, subsection (b) supplies the relief this track generates: after a period of not less than six months, beginning to run immediately on the expiration of the term of probation, the person may apply to the court for an order to expunge from all official records all recordations of the arrest, trial and conviction, and if the court determines after a hearing that the person was not guilty of any serious or repeated violation of the conditions of probation during probation or before the application, it shall order the expungement. Subsection (c) makes the person liable for the court costs assessable against a person convicted under Sec. 60A-4-401(c), and payment may be a condition of probation.

WHERE IT GOES

Clerk of the court that entered the conditional discharge order

File the application with the clerk of the court that deferred proceedings and placed the participant on probation, once at least six months have run from the expiration of the probation term. The statute contemplates a hearing at which the court determines whether there was any serious or repeated violation of the conditions of probation.

Venue: The court that entered the conditional discharge and imposed probation. Section 60A-4-407(b) directs the application to 'the court', which is the court whose probation expired.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: Section 60A-4-407 charges no fee for the application. Under subsection (c) the participant remains liable for the court costs assessable against a person convicted under Sec. 60A-4-401(c), and payment may have been made a condition of probation. Whether a circuit clerk charges a civil filing fee for the application is not established by the section. Fee waiver as recorded: none stated in Sec. 60A-4-407.

WHO MUST BE SERVED

Service as recorded: Serve the prosecuting attorney of the county and the supervising probation office, following the Sec. 61-11-26(e) service practice West Virginia clerks expect. Notice as recorded: Section 60A-4-407(b) provides for a hearing but names no statutory notice or opposition window. The application is served on the prosecuting attorney as a matter of ordinary practice.

WHAT THE RECORD SAYS YOU MUST KNOW

- Expungement window: at least six months after the end of probation, the person may apply for expungement of official records of the arrest, trial, and conviction.
- One-time limit: only one discharge and dismissal is allowed under this section.
- What LegalEase can prepare: the application, the probation expiration proof, and the six-month calculation.
- Before drafting anything for these tracks, confirm the Judiciary form index. If drafting proves necessary, the section 61-11-26(d) petition contents list is the right model for verified content, and the section 61-11-26(e) service list is the right model for service, even on tracks governed by other statutes, because West Virginia circuit clerks will expect that shape.
- Tell the participant to obtain the conditional discharge order, the order of discharge and dismissal, and the probation office's written confirmation of the probation expiry date, and to attach them.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Anyone has alleged that the participant committed a serious or repeated violation of the conditions of probation, whether during probation or since.
- The participant has had a prior drug conviction or a prior conditional discharge, either of which means the underlying discharge should not have been available.
- Probation was revoked, or the court entered an adjudication of guilt.
- The participant is also considering a Sec. 61-11-26 conviction expungement, because whether this relief spends the once-per-lifetime petition is unresolved.
- The court sets a contested hearing or the prosecuting attorney objects.
- The clerk of the court will not accept a self-drafted application, or requires a local form.
- Firearm rights, immigration consequences, professional licensing, or federal, tribal, military or out-of-state records questions.
- LegalEase must not generate any assertion about the participant's probation violation history. The court determines whether there was a serious or repeated violation.
- If the prosecuting attorney objects or the court sets a contested hearing on the probation-violation question, automated assistance ends and the participant needs a lawyer. The initial packet still generates.

THE PAGES IN THIS SET

- `wv_drug_conditional_discharge-primary-filing-1`: the composed petition, on this route's own statutory ground (Clear a first drug-possession case that ended in a conditional discharge)
- `wv_drug_conditional_discharge-supporting-affidavit-2`: the sworn affidavit filed with the application (Clear a first drug-possession case that ended in a conditional discharge)

- wv_drug_conditional_discharge-certificate-of-service-3: the page on which the participant records that the papers were actually delivered, signed only after delivery (Clear a first drug-possession case that ended in a conditional discharge)

Route:

obligation:track-pathway:WV:wv_drug_conditional_discharge:first-offense-drug-possession-conditional-discharge-relief